



SECURITIES AND FUTURES COMMISSION 證券及期貨事務監察委員會

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Circular to Licensed Corporations and Registered Institutions

Licensing Information Booklet and Handling of Licensing Related Enquiries

This circular is to inform intermediaries that the Securities and Futures Commission (“SFC”) has published a Licensing Information Booklet (the “Booklet”) providing useful information concerning licensing and related requirements under the Securities and Futures Ordinance. This circular also draws the attention of intermediaries on the SFC’s policy in dealing with licensing related enquiries.

Licensing Information Booklet

In a succinct summary format, the Booklet covers a number of topics such as types of regulated activities, scope of the licensing net including related exemptions, procedures of applying for a licence or registration, basic approval criteria, on-going obligations of licensed persons and registered institutions, etc. Further, in the appendix section of the Booklet, there is, among others, an elaboration of the licensing requirements for persons providing financial information on the Internet or on-line trading services.

The Booklet can be downloaded free of charge from the SFC website at <http://www.hksfc.org.hk> (under “*Intermediaries, Licensing & Investment Products*” – “*Licensing Related Matters*” – “*Licensing Related Publications*”). Printed copies will soon be available for sale at \$50 each at the SFC office.

The SFC would like to remind that apart from the Booklet, intermediaries may also access related information through the SFC Infoline (telephone number: 2840-9393). A reference guide to the Infoline is appended to the Booklet to assist users in obtaining the required licensing information or documents, e.g. licence application forms and notification forms.





Handling of licensing related enquiries

It is believed that the Booklet, together with the Infoline and other supplementary information such as Answers to the Frequently Asked Questions posted on the SFC website, could deal with most enquiries on licensing matters¹. Intermediaries, in particular their personnel performing the compliance functions, should hence make good use of the materials available since they are primarily responsible for responding to their staff members' enquiries on licensing and related matters.

Where the matters warrant special consideration by us, the enquiries from licensed persons may be raised with the SFC **through the compliance personnel** of the relevant licensed corporations. In that regard, the compliance personnel should contact the relevant Intermediaries Relationship Manager of the SFC Licensing Department directly. Enquiries on licensing matters other than those raised through the compliance personnel should be directed to the Infoline². Enquiries from registered institutions and their relevant individuals should, on the other hand, be directed **through their compliance personnel** to the responsible case officer in the Banking Supervision Department of the Hong Kong Monetary Authority ("HKMA"). The above arrangement is implemented with a view to sustaining an equitable and effective deployment of regulatory resources. Please bring this matter to the attention of your staff members and update your related internal procedures.

Should you have any queries on the above, please contact your Intermediaries Relationship Manager of the SFC Licensing Department. If you are a registered institution, you may first contact your case officer at the HKMA Banking Supervision Department.

**Licensing Department
Intermediaries and Investment Products Division
Securities and Futures Commission**

¹ To obtain information on the administration of competence examinations for the purpose of licensing, intermediaries should directly approach the relevant examination bodies, e.g. the Hong Kong Securities Institute. Related enquiries should also be raised with the examination bodies concerned.

² If a caller of the Infoline cannot obtain the required licensing information, he may leave a message of his enquiries by pressing 2 – 3 – 9 after reaching the main menu of the Infoline. We will endeavour to respond to those enquiries as soon as practicable.

